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June 29, 2016					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO. 1953(I)

KAIRAT NURGAZINOV

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

ORDER FOR PARTIES TO SUPPLEMENT THE RECORD

“The Commission ‘is not a court, and cannot rely . . . on the powers of a court of equity. On the contrary, the law is settled that an administrative agency can exercise only those powers conferred on it by Congress.’” *Trans-Pacific Freight Conference of Japan v. FMB*, 302 F.2d 875, 880 (D.C. Cir. 1962). The Commission has jurisdiction over matters relating to “transportation by water of . . . cargo between the United States and a foreign country,” 46 U.S.C. § 40102(6), by a common carrier as defined by the Shipping Act. That jurisdiction essentially begins when a common carrier assumes responsibility for transportation of the cargo and ends when the cargo is delivered to the consignee at the place of destination contemplated by the contract of carriage. *See, e.g., Norfolk Southern R. Co. v. James N. Kirby, Pty Ltd.*, 543 U.S. 14, 23-27 (2004) (finding that federal maritime law applies to the inland portions of international shipments transported under a through

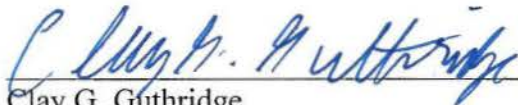
bill of lading). *See also, Kawasaki Kisen Kaisha, Ltd. v. Regal-Beloit Corp.*, 561 U.S. 89, 108 (2010) (finding that ocean transportation occurring under a through bill of lading cannot be separated into ocean and domestic inland transportation); *accord, Mitsui O.S.K. Lines Ltd. v. Global Link Logistics*, 2011 FMC LEXIS 12, 56 (FMC 2011) (“[L]egislative history demonstrates that Congress intended that the Commission have jurisdiction over through transportation including the inland segment of such transportation.”) The Commission must determine whether it has jurisdiction over claims made in a complaint.

This consolidated proceeding concerns the transportation by water of four automobiles from the United States to a port or point in a foreign country. To facilitate the Commission’s determination of jurisdiction, it is hereby

ORDERED that on or before July 18, 2016, each party individually submit the following information for the transportation of each of the four automobiles pursuant to any bill of lading issued regarding the transportation. Each assertion should cite to supporting evidence in the record or attached to the submission.

1. Identify each common carrier that assumed responsibility for transportation of the automobile from the United States to a port or point in a foreign country.
2. For each carrier, identify the shipper or shippers.
3. For each carrier, identify the consignee or consignees.
4. For each carrier, identify the port or point of origin.
5. For each carrier, identify the date the shipment began.
6. For each carrier, identify the port or point of delivery.
7. For each carrier, identify the date of delivery.
8. Identify the entity that directly paid each common carrier for the transportation by water.
9. Did the vessel-operating common carrier transport the cargo pursuant to a service contract with respondent Empire United Lines Co., Inc.?

Each party may reply to the submission of the other party on or before July 25, 2016.


Clay G. Guthridge
Administrative Law Judge